

Group Will Spur Suits Against Cigarette Makers

By JOHN D. MORRIS

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WASHINGTON, Jan. 28—An organization called Action on Smoking and Health hopes to inspire a rash of damage suits against cigarette manufacturers by marketing a Do-it-yourself kit for lawyers.

The kit will provide facts, references and other materials for handy use in behalf of clients with lung cancer or survivors of smokers who died of the disease.

Preparation of the kit is one of many projects planned for 1969 by ASH, as the year-old organization designates itself. The program was outlined in an interview yesterday by John Banzhaf 3d, founder and executive director of the organization, which moved its headquarters from New York to Washington last August.

Mr. Banzhaf, a 28-year-old lawyer, filed the complaint that led to a 1967 ruling by the Federal Communications Commission requiring broadcasters of cigarette advertisements to provide "a significant amount of time" for opponents to present the case against smoking.

Broadcasting Monitored

In forming ASH, his chief aim was to keep tabs on broadcasters and file complaints with the commission against stations suspected of violating the ruling.

He has done so with the help of a network of volunteer monitors who send him reports on the number and length of cigarette advertisements and anticigarette messages on television and radio stations in their communities.

License renewals of several stations are being held up by the commission because of petitions filed by Mr. Banzhaf on the basis of the monitors' reports.

With the organization now well established under the sponsorship of 30 leading physicians, scientists, lawyers, educators and publicists, Mr. Banzhaf is broadening his field of operation.

Whether the do-it-yourself kit is successful may depend on the outcome of a case now pending before the United States Court of Appeals for the Fifth Circuit in New Orleans.

Reversing a jury verdict in the Federal District Court in Miami, the appeals court held a year ago that the American Tobacco Company was liable for damages to the widow of



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John Banzhaf 3d, executive director of ASH (Action on Smoking and Health), at work in his Washington office.

Edwin Green Sr. of Miami, who smoked Lucky Strike cigarettes and died of cancer.

"We are now left in no substantial doubt," the court said in a 2-to-1 decision, "that under Florida law the decedent was entitled to rely on the implied assurance that the Lucky Strike cigarettes were wholesome and fit for the purpose intended and that under the facts found by the jury his personal representative and widow are entitled to hold the manufacturer absolutely liable."

The case was sent back to the lower court for assessment of damages, but the order was subsequently set aside and a rehearing by all 13 judges of the appeals court was granted the tobacco company. A ruling by the full court is now awaited.

If the earlier three-judge decision is upheld, it will be the first recovery of damages

against a cigarette manufacturer for the death or impairment of a smoker. About 65 to 70 such suits have been filed in the last 15 years, but only five have come to trial, according to industry lawyers.

Most scientists who have studied the evidence agree that cigarette smoking is a major factor in causing lung cancer. The tobacco industry contends, however, that the case against smoking has not been proved.

Purposes Are Outlined

In preparing his kit, Mr. Banzhaf is prompted by the example of lawyers who have exchanged information in a number of suits against the General Motors Corporation in connection with accidents involving early models of the Chevrolet Corvair.

He plans to make the kit available at cost, which he estimates at \$100 to \$200. It will include summaries of cancer

research reports, excerpts from legal briefs and court opinions, and the names of expert witnesses.

"Our purposes," said Mr. Banzhaf, an articulate, to-the-point man, "are, one, to help people get the compensation they deserve; two, to put the responsibility where it belongs—make the tobacco companies pay for the deaths and tragedy which they cause, perhaps hit them very hard in their pocket-books; three, at the very least, to make them take more care in pointing out the dangers to the public; fourth, by publicity from the lawsuits, to remind people again and again and perhaps convince them that smoking can cause death and disability."

Expenses of \$50,000

Expenses of the organization in the first year have amounted to about \$50,000 and contributions, about \$75,000, Mr. Banzhaf said. He said that the organization could easily use up to \$300,000 a year on projects "which would give an enormous return" in public benefits.

Mr. Banzhaf, although a non-smoker, insisted that he was not an antismoking fanatic. He said there were other problems of greater importance than smoking, such as racial relations. But as a lawyer, he explained, he saw an opportunity to perform a public service in the smoking field while he was not competent to accomplish nearly so much in improving racial relations.

He said he nevertheless hopes to get involved later in some other consumer protection causes.

Teaches Law in Capital

He left a Park Avenue law firm last year to devote more time to countering the spread of cigarette smoking by legal action. He is now an associate law professor at the George Washington University here. His two-room suite at the George Washington Law Center doubles as headquarters for ASH.

Mr. Banzhaf has been so busy since coming to Washington last August that he has not taken time to furnish his bachelor's apartment. He has ordered a bed but still has no lamps in his living room.

The lawyer was born in New York and was reared in the Bronx. Both his parents are public school teachers. He attended the Massachusetts Institute of Technology and was graduated magna cum laude in 1965 from the Columbia University Law School.

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